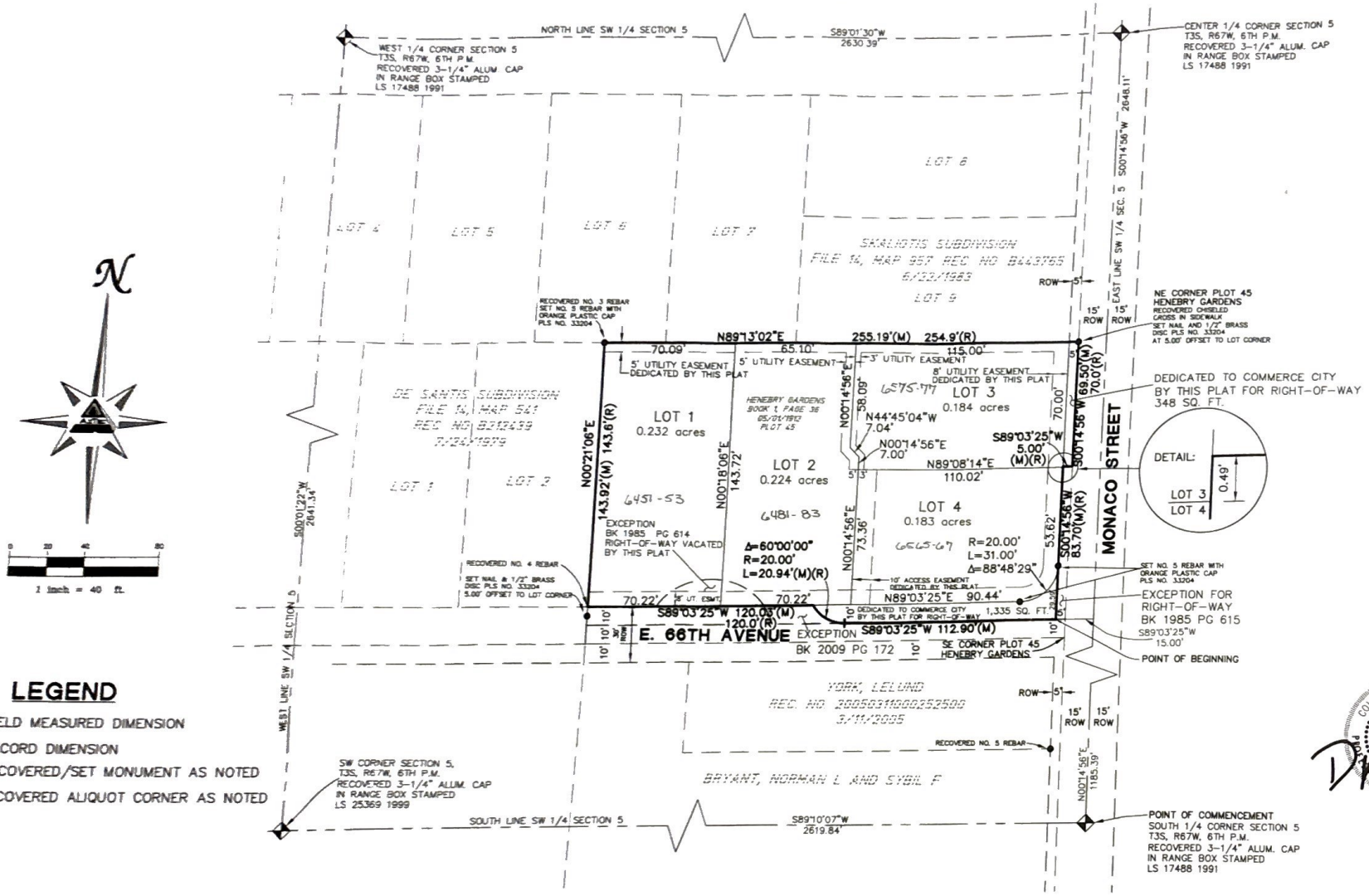
FINAL SUBDIVISION PLAT
NORTH MONACO PLACE

A REPLAT OF A PORTION OF PLOT 45, HENEBRY GARDENS
LOCATED IN THE SOUTHWEST QUARTER OF SECTION 5, TOWNSHIP 3 SOUTH,
RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN,
CITY OF COMMERCE CITY, COUNTY OF ADAMS, STATE OF COLORADO
SHEET 2 OF 2



LEGEND

- (M) FIELD MEASURED DIMENSION
- (R) RECORD DIMENSION
- • RECOVERED/SET MONUMENT AS NOTED
- ◆ RECOVERED ALIQUOT CORNER AS NOTED

COLORADO LICENSED
DALE C. RUSH
12-7-07
33204
PROFESSIONAL LAND SURVEYOR

DECEMBER 07,2007

AZTEC CONSULTANTS, inc.
AZTEC JOB NO. 48407-01
300 East Mineral Avenue, Suite 1
Littleton, Colorado 80122
Phone: (303)713-1898 Fax: (303)713-1897

FINAL SUBDIVISION PLAT
NORTH MONACO PLACE

A REPLAT OF A PORTION OF PLOT 45, HENEBRY GARDENS
LOCATED IN THE SOUTHWEST QUARTER OF SECTION 5, TOWNSHIP 3 SOUTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, CITY OF COMMERCE CITY, COUNTY OF ADAMS, STATE OF COLORADO

SHEET 1 OF 2

DEDICATION STATEMENT

KNOW ALL MEN BY THESE PRESENTS THAT DISCOVERY CAPITOL, LLC., BEING THE OWNER OF THAT PART OF THE SOUTHWEST ONE-QUARTER (SW 1/4) OF SECTION 5, TOWNSHIP 3 SOUTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, CITY OF COMMERCE CITY, COUNTY OF ADAMS, STATE OF COLORADO BEING MORE PARTICULARLY DESCRIBED HEREIN HAS BY THESE PRESENTS LAID OUT, PLATTED AND SUBDIVIDED THE SAME INTO FOUR (4) LOTS, STREETS AND EASEMENTS AS SHOWN ON THIS PLAT UNDER THE NAME AND STYLE OF NORTH MONACO PLACE, AND DOES HEREBY GRANT, DEDICATE AND CONVEY TO THE CITY OF COMMERCE CITY, COUNTY OF ADAMS, STATE OF COLORADO, ALL STREET RIGHTS-OF-WAY SHOWN HEREON FOR PUBLIC USES AND PURPOSES. THE SPECIFIC PURPOSE EASEMENTS SHOWN HEREON ARE HEREBY DEDICATED FOR PUBLIC UTILITIES, DRAINAGE, CABLE COMMUNICATION SYSTEMS AND OTHER PURPOSES AS MORE PARTICULARLY SET FORTH HEREIN.

EXECUTED THIS _____ DAY OF _____ A.D., 2007.

DISCOVERY CAPITOL, LLC

BY: _____ BY: _____

_____ AUTHORIZED AGENT

_____ AUTHORIZED AGENT

STATE OF COLORADO }
COUNTY OF _____ } SS

THE FOREGOING DEDICATION WAS ACKNOWLEDGED BEFORE ME THIS _____ DAY OF _____ A.D. 2007, BY _____ AS AUTHORIZED AGENT, AND _____ AS AUTHORIZED AGENT, DISCOVERY CAPITOL, LLC

WITNESS MY HAND AND OFFICIAL SEAL:

MY COMMISSION EXPIRES: _____

_____ NOTARY PUBLIC

LEGAL DESCRIPTON

THE EAST TWO-FIFTHS OF PLOT 45,
HENEBRY GARDENS,
EXCEPT THOSE PORTIONS CONVEYED IN BOOK 1985 PAGE 614
BOOK 1985 PAGE 615 AND BOOK 2009 PAGE 172,
COUNTY OF ADAMS, STATE OF COLORADO.

BEING MORE PARTICULARY DESCRIBED AS FOLLOWS:

A PARCEL OF LAND BEING A PORTION OF PLOT 45, HENEBRY GARDENS, A SUBDIVISION PLAT RECORDED IN THE OFFICE OF THE ADAMS COUNTY CLERK AND RECORDER IN BOOK 1 PAGE 36 ON MAY 01, 1912, LYING IN THE SOUTHWEST QUARTER OF SECTION 5, TOWNSHIP 3 SOUTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, COUNTY OF ADAMS, STATE OF COLORADO, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 5, WHENCE THE CENTER ONE-QUARTER CORNER OF SAID SECTION 5 BEARS NORTH 00°14'56" EAST, WITH ALL BEARINGS HEREIN BEING REFERENCED TO THIS LINE.

THENCE NORTH 00°14'56" EAST, 1185.39 FEET ALONG THE EAST LINE OF SAID SOUTHWEST QUARTER OF SECTION 5;

THENCE DEPARTING SAID EAST LINE, SOUTH 89°03'25" WEST, 15.00 FEET TO THE SOUTHEAST CORNER OF THAT PARCEL OF LAND DESCRIBED AND RECORDED IN BOOK 1985, PAGE 615 IN SAID RECORDS;

THENCE SOUTH 89°03'25" WEST, 5.00 FEET TO THE SOUTHWEST CORNER OF SAID PARCEL AND THE POINT OF BEGINNING;

THENCE ALONG THE NORTH RIGHT-OF-WAY LINE OF EAST 66TH AVENUE, SOUTH 89°03'25" WEST, 112.90 FEET TO THE BEGINNING OF A TANGENT CURVE CONCAVE NORTHEASTERLY HAVING A RADIUS OF 20.00 FEET;

THENCE NORTHWESTERLY ALONG SAID CURVE THROUGH A CENTRAL ANGLE OF 60°00'00" AN ARC LENGTH OF 20.94 FEET TO A POINT ON THE NORTH LINE OF THAT PARCEL OF LAND DESCRIBED AND RECORDED IN BOOK 2009 AT PAGE 172 IN SAID RECORDS;

THENCE CONTINUING ALONG SAID NORTH LINE, SOUTH 89°03'25" WEST, 120.03 FEET TO THE SOUTHEAST CORNER OF DE SANTIS SUBDIVISION, A SUBDIVISION PLAT RECORDED IN SAID RECORDS IN FILE 14, MAP 541 AT RECEPTION NO. B212439 ON JULY 24, 1979,

THENCE NORTH 00°21'06" EAST, 143.92 FEET ALONG THE EAST LINE OF SAID DE SANTIS SUBDIVISION TO THE NORTHEAST CORNER OF SAID SUBDIVISION, SAID POINT ALSO BEING A POINT ON THE SOUTH LINE OF LOT 6, SKALIOTIS SUBDIVISION, A SUBDIVISION PLAT RECORDED IN SAID RECORDS IN FILE 14, MAP 957 AT RECEPTION NO. B443765 ON JUNE 22, 1983,

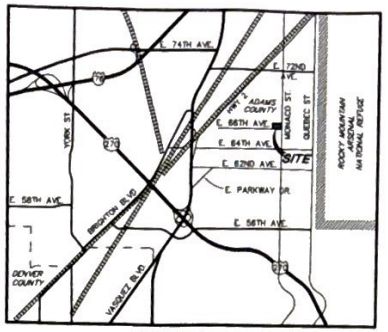
THENCE NORTH 89°13'02" EAST, 255.19 FEET ALONG THE SOUTH LINE OF SAID SKALIOTIS SUBDIVISION TO THE SOUTHEAST CORNER OF SAID SUBDIVISION, ALSO BEING A POINT ON THE WEST RIGHT-OF-WAY LINE OF MONACO STREET;

THENCE SOUTH 00°14'56" WEST, 69.50 FEET ALONG SAID WEST RIGHT-OF-WAY LINE TO THE NORTHEAST CORNER OF SAID PARCEL OF LAND DESCRIBED AND RECORDED IN BOOK 1985, PAGE 615 IN SAID RECORDS;

THENCE CONTINUING ALONG SAID WEST RIGHT-OF-WAY LINE, SOUTH 89°03'25" WEST, 5.00 FEET TO THE NORTHWEST CORNER OF SAID PARCEL OF LAND;

THENCE CONTINUING ALONG SAID WEST RIGHT-OF-WAY LINE, ALSO BEING THE WEST LINE OF SAID PARCEL OF LAND, SOUTH 00°14'56" WEST, 83.70 FEET TO THE POINT OF BEGINNING;

CONTAINING AN AREA OF 0.862 ACRES OR 37,530 SQUARE FEET MORE OR LESS.



VICINITY MAP
(NOT TO SCALE)

NOTICE IS HEREBY GIVEN

1. ANY CONSTRUCTION ACROSS EXISTING SUBDIVISION LOT LINES IS IN VIOLATION OF THE SUBDIVISION REGULATIONS OF THE CITY, EXCEPT AS HEREIN AUTHORIZED.
2. ANY DIVISION OF AN EXISTING LOT, OR CONVEYANCE OF A PART OF AN EXISTING SUBDIVISION LOT, IS IN VIOLATION OF THIS ARTICLE UNLESS (1) APPROVED BY THE CITY OF COMMERCE CITY; OR (2) IS EXCEPTED FROM THE DEFINITION OF "SUBDIVISION" AS PROVIDED BY THE SUBDIVISION REGULATIONS.
3. THIS SUBDIVISION PLAT DIVIDES LANDS PREVIOUSLY APPROVED AS A PART OF HENEBRY GARDENS RECORDED MAY 01, 1912 IN BOOK 1, PAGE 36 IN THE OFFICE OF THE CLERK AND RECORDER OF ADAMS COUNTY, COLORADO.

NOTES

1. ANY PERSON WHO KNOWINGLY REMOVES, ALTERS OR DEFACES ANY PUBLIC LAND SURVEY MONUMENT OR ACCESSORY COMMITS A CLASS TWO (2) MISDEMEANOR PURSUANT TO STATE STATUE 18-4-508, C.R.S.
2. THIS SURVEY RELIES ON STEWART TITLE GUARANTY COMPANY COMMITMENT NO. 50183429 DATED JULY 19, 2007. NO TITLE SEARCH WAS MADE BY AZTEC CONSULTANTS, INC. TO DETERMINE OWNERSHIP OR EASEMENTS OF RECORD. ALL TAX INFORMATION, LIENS, LEASES, DEEDS OF TRUST, RELEASES, CLAIMS, ASSIGNMENTS, ASSUMPTIONS, TERMS, AGREEMENTS, MOTIONS, DECLARATIONS, PROVISIONS, CONDITIONS, RESERVATIONS, WATER AND MINERAL RIGHTS AND OBLIGATIONS FOR THE PROPERTY SHOWN HEREON ARE REFLECTED IN SAID TITLE COMMITMENT
3. BASIS OF BEARINGS: BEARINGS ARE BASED ON THE EASTERLY LINE OF THE SOUTHWEST QUARTER OF SECTION 5, TOWNSHIP 3 SOUTH, RANGE 67 WEST, SIXTH P.M. WHICH WAS ASSUMED TO BEAR NORTH 00°14'56" EAST AND IS MONUMENTED AS SHOWN HEREON.

SURVEYOR'S CERTIFICATE

I, DALE C. RUSH, A LICENSED PROFESSIONAL LAND SURVEYOR, LICENSED IN THE STATE OF COLORADO DO HEREBY CERTIFY THAT THERE ARE NO ROADS, PIPELINES, IRRIGATION DITCHES, OR OTHER EASEMENTS IN EVIDENCE OR KNOWN BY ME TO EXIST ON OR ACROSS THE HEREIN BEFORE DESCRIBED PROPERTY EXCEPT AS SHOWN ON THIS PLAT. I FURTHER CERTIFY THAT I HAVE PERFORMED THE SURVEY SHOWN HEREON, OR SUCH SURVEY WAS PREPARED UNDER MY DIRECT RESPONSIBILITY AND SUPERVISION, THAT THIS PLAT ACCURATELY REPRESENTS SAID SURVEY, AND THAT ALL MONUMENTS EXIST AS SHOWN HEREIN.

COLORADO LICENSED DALE C. RUSH 12-7-07 33204 PROFESSIONAL LAND SURVEYOR

_____
DALE C. RUSH
COLORADO LICENSED PROFESSIONAL LAND SURVEYOR, P.L.S. 33204
FOR AND ON BEHALF OF AZTEC CONSULTANTS, INC.
300 E. MINERAL AVE., SUITE 1
LITTLETON, CO. 80122
(303) 713-1898

NOTICE: ACCORDING TO COLORADO LAW YOU MUST COMMENCE ANY LEGAL ACTION BASED UPON ANY DEFECT IN THIS SURVEY WITHIN THREE YEARS AFTER YOU FIRST DISCOVERED SUCH DEFECT. IN NO EVENT MAY ANY ACTION BASED UPON ANY DEFECT IN THIS SURVEY BE COMMENCED MORE THAN TEN YEARS FROM THE DATE OF THE CERTIFICATION SHOWN HEREON.

CITY STAFF CERTIFICATE

APPROVED BY THE CITY ENGINEER OF THE CITY OF COMMERCE CITY THIS _____ DAY OF _____ A.D. 2007.

BY: _____
CITY ENGINEER

APPROVED BY THE DIRECTOR, DEPARTMENT OF COMMUNITY PLANNING AND DEVELOPMENT SERVICES OF THE CITY OF COMMERCE CITY, THIS _____ DAY OF _____ A.D. 2007.

BY: _____
DIRECTOR, DEPARTMENT OF COMMUNITY PLANNING AND DEVELOPMENT SERVICES

ADAMS COUNTY CLERK AND RECORDER'S CERTIFICATE

THIS PLAT WAS FILED FOR RECORD IN THE OFFICE OF THE ADAMS COUNTY CLERK AND RECORDER, IN THE STATE OF COLORADO, AT _____M. ON THE _____ DAY OF _____A.D., 2007.

_____
COUNTY CLERK AND RECORDER

BY: _____
DEPUTY

RECEPTION NO. _____

DECEMBER 07,2007

AZTEC CONSULTANTS, INC.
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